

An Act

ENROLLED HOUSE
BILL NO. 3127

By: West (Kevin) of the House

and

Alvord and Bullard of the
Senate

An Act relating to medical marijuana; amending 63 O.S. 2021, Section 427.8, which relates to rights and restrictions related to medical marijuana use and possession; modifying exception to certain employer mandate; implementing zero-tolerance policy for certain applicants and employees; clarifying exceptions to certain act and medical marijuana laws; modifying scope of certain defined term; and providing an effective date.

SUBJECT: Medical marijuana

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 63 O.S. 2021, Section 427.8, is amended to read as follows:

Section 427.8. A. The rights to possess the marijuana products set forth in Section 420 of ~~Title 63 of the Oklahoma Statutes~~ this title are cumulative and a duly licensed individual may possess at any one time the totality of the items listed therein and not be in violation of this act so long as the individual holds a valid patient license or caregiver license.

B. Municipal and county governing bodies may not enact medical marijuana guidelines which restrict or interfere with the rights of a licensed patient or caregiver to possess, purchase, cultivate or transport medical marijuana within the legal limits set forth in this act or Section 420 et seq. of ~~Title 63 of the Oklahoma Statutes~~ this title or require patients or caregivers to obtain permits or licenses in addition to the state-required licenses provided herein.

C. Nothing in this act or Section 420 et seq. of ~~Title 63 of the Oklahoma Statutes~~ this title shall prohibit a residential or commercial property or business owner from prohibiting the consumption of medical marijuana or medical marijuana product by smoke or vaporization on the premises, within the structures of the premises or within ten (10) feet of the entryway to the premises. However, a medical marijuana patient shall not be denied the right to consume or use other medical marijuana products which are otherwise legal and do not involve the smoking or vaporization of cannabis when lawfully recommended pursuant to Section 420 of ~~Title 63 of the Oklahoma Statutes~~ this title.

D. A medical marijuana patient or caregiver licensee shall not be denied eligibility in public assistance programs including, but not limited to, Medicaid, Supplemental Nutrition Assistance Program (SNAP), Women, Infants, and Children Nutrition Program (WIC), Temporary Assistance for Needy Families (TANF) or other such public assistance programs based solely on his or her status as a medical marijuana patient or caregiver licensee, unless required by federal law.

E. A medical marijuana patient or caregiver licensee shall not be denied the right to own, purchase or possess a firearm, ammunition, or firearm accessories based solely on his or her status as a medical marijuana patient or caregiver licensee. No state or local agency, municipal or county governing authority shall restrict, revoke, suspend or otherwise infringe upon the right of a person to own, purchase or possess a firearm, ammunition, or firearm accessories or any related firearms license or certification based solely on ~~their~~ his or her status as a medical marijuana patient or caregiver licensee.

F. A medical marijuana patient or caregiver in actual possession of a medical marijuana license shall not be subject to arrest, prosecution or penalty in any manner or denied any right, privilege or public assistance, under state law or municipal or county ordinance or resolution including without limitation a civil penalty or disciplinary action by a business, occupational or professional licensing board or bureau, for the medical use of marijuana in accordance with this act.

G. A government medical assistance program shall not be required to reimburse a person for costs associated with the medical use of marijuana unless federal law requires reimbursement.

H. Unless otherwise required by federal law or required to obtain federal funding:

1. No employer may refuse to hire, discipline, discharge or otherwise penalize an applicant or employee solely on the basis of such applicant's or employee's status as a medical marijuana licensee; and

2. No employer may refuse to hire, discipline, discharge or otherwise penalize an applicant or employee solely on the basis of a positive test for marijuana components or metabolites, unless:

- a. the applicant or employee is not in possession of a valid medical marijuana license,
- b. the licensee possesses, consumes or is under the influence of medical marijuana or medical marijuana product while at the place of employment or during the fulfillment of employment obligations, or
- c. ~~the position is one involving safety-sensitive job duties, as such term is defined in subsection K of this section~~ such action is taken pursuant to a written drug and alcohol testing policy adopted and enforced in accordance with the Standards for Workplace Drug and Alcohol Testing Act, Section 551 et seq. of Title 40 of the Oklahoma Statutes.

Notwithstanding any other provision of this section, an applicant or employee employed in a safety-sensitive position, as defined in subsection K of this section shall be subject to a zero-tolerance drug and alcohol standard. This requirement shall apply regardless of any employer policy permitting impairment-based testing or alternative standards for positions not designated as safety-sensitive.

I. Nothing in this act or Section 420 et seq. of ~~Title 63 of the Oklahoma Statutes~~ this title shall:

1. Require an employer to permit or accommodate the use, possession, sale, transfer, or being under the influence of medical marijuana on the property or premises of any place of employment or during hours of employment workplace or while performing job duties;

2. Require an employer, a government medical assistance program, private health insurer, ~~worker's~~ workers' compensation carrier or self-insured employer providing ~~worker's~~ workers' compensation benefits to reimburse a person for costs associated with the use of medical marijuana; or

3. ~~Prevent~~ Limit an ~~employer from having~~ employer's ability to implement and enforce written drug and alcohol testing policies regarding drug testing and impairment, including policies that prohibit the use of marijuana in the workplace or while performing job duties, in accordance with the ~~Oklahoma~~ Standards for Workplace Drug and Alcohol Testing Act, Section 551 et seq. of Title 40 of the Oklahoma Statutes.

J. Any applicant or employee aggrieved by a willful violation of this section shall have, as his or her exclusive remedy, the same remedies as provided for in the Oklahoma Standards for Workplace Drug and Alcohol Testing Act set forth in Section 563 of Title 40 of the Oklahoma Statutes.

K. As used in this section:

1. ~~"Safety-sensitive"~~ "Safety-sensitive position" means any ~~job that includes tasks or duties that the employer reasonably believes could affect the safety and health of~~ position in which the employee performing the task or others including, but not limited to, any performs one or more of the following duties, including, but not limited to:

- a. the handling, packaging, processing, storage, disposal or transport of hazardous materials,
- b. the operation of a motor vehicle, other vehicle, equipment, machinery or power tools,
- c. repairing, maintaining or monitoring the performance or operation of any equipment, machinery or manufacturing process, the malfunction or disruption of which could result in injury or property damage,
- d. performing firefighting duties,
- e. the operation, maintenance or oversight of critical services and infrastructure including, but not limited

to, electric, gas, and water utilities, power generation or distribution,

- f. the extraction, compression, processing, manufacturing, handling, packaging, storage, disposal, treatment or transport of potentially volatile, flammable, combustible materials, elements, chemicals or any other highly regulated component,
- g. dispensing pharmaceuticals,
- h. carrying a firearm, or
- i. direct patient care or direct child care; and

2. A "positive test for marijuana components or metabolites" means a result that is at or above the cutoff concentration level established by the United States Department of Transportation or Oklahoma law regarding being under the influence, whichever is lower.

L. All smokable, vaporized, vapable and e-cigarette medical marijuana product inhaled through vaporization or smoked by a medical marijuana licensee are subject to the same restrictions for tobacco under Section 1-1521 of ~~Title 63 of the Oklahoma Statutes~~ this title, commonly referred to as the "Smoking in Public Places and Indoor Workplaces Act".

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 24th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 15th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____

Approved by the Governor of the State of Oklahoma this _____
day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____